

The Demurrer is **sustained without leave to amend**.

2. 9:00 AM CASE NUMBER: C22-02021

CASE NAME: XIAO ZHENG VS. MICHAEL CISTERNINO

*HEARING ON MOTION IN RE: STRIKE CERTAIN IMPROPER MATTER FROM THE NOTICE OF LIEN
FILED BY DEFENDANTS ON 3/26/26

FILED BY: ZHENG, XIAO YI

TENTATIVE RULING:

Before the Court is a motion by plaintiff Ziao Yi Zheng to strike a notice of lien filed by defendants Michael Cisternino, Kristen Morcos, and KMOR LLC. For the reasons set forth, the motion is **denied**.

Background

This action involves a dispute over a real estate transaction. In his operative first amended complaint ("FAC"), Plaintiff Ziao Yi Zheng has sued The Kase Group, which he alleges is a licensed real estate brokerage firm ("Kase"), Michael Cisternino ("Cisternino"), alleged to be a licensed real estate broker, KMOR, LLC dba F45 Training Moraga ("KMOR"), Kristen Morcos ("Morcos"), alleged to be affiliated with KMOR prior to its formation and a managing member after it was formed in 2020, and Jacob Abusharkh ("Abusharkh"), also alleged to be a California real estate licensee. (FAC ¶¶ 2-6.) Plaintiff alleges he is the trustee of the Zheng Family Trust which is the owner of a commercial building in a shopping center located in Moraga (the "Property") where the F45 Training Moraga gym was to become a tenant. (FAC ¶ 1.) Plaintiff alleges that Michael Cisternino was a Senior Vice President or otherwise an associate in the Kase firm and a managing principal of KMOR at the time of the transactions at issue in the FAC. (FAC ¶ 3.)

Plaintiff asserts fifteen causes of action in the FAC arising out of an exclusive six-month listing agreement with Kase for the sale of the Property, and the subsequent lease transaction with an option to purchase by which KMOR became a lessee and tenant at the Property. Plaintiff alleges, among other things, the nondisclosure of Cisternino's interest in KMOR when he presented KMOR's proposals for the Property as the only interest received in the six-month period of the listing and asserts breaches of fiduciary duties and fraud or concealment of material facts in connection with the lease transaction with KMOR.

Disputes have arisen over discovery. In connection with such a dispute, this Court awarded sanctions against Zheng and his (now former) counsel in favor of defendant Cisternino. (1/12/2024 Min. Order Adopting Tent. Rul. Awarding \$9,082 in Sanctions.) Plaintiff and his counsel sought review of the order awarding sanctions in the First District Court of Appeal, and the Court of Appeal affirmed the trial court's sanctions order. (1st DCA Order dated 10/8/2025; Remittur filed 12/12/2025.) Plaintiff is now self-represented.

On March 26, 2026, Cisternino filed a Notice of Lien reflecting the \$9,082 sanctions award (the "March Lien"). (3/26/2026 Not. of Lien.) Plaintiff moves the Court for an order striking the March Lien, arguing that the monetary claim subject to the March Lien has been satisfied.

Legal Standards Applicable to Motion to Strike and Analysis

Zheng's motion to strike is made pursuant to Code of Civil Procedure sections 435, 436(a), 436(b), and

437. (Not. Mtn. p. 1, ll. 24-28.) Code of Civil Procedure section 436 provides: "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Emphasis added.)

A motion pursuant to Code of Civil Procedure section 435, as referenced in section 436, addresses specific types of pleadings which may be the subject of a motion to strike. Code of Civil Procedure section 435 provides in pertinent part: "(a) As used in this section: [¶] (1) The term "complaint" includes a cross-complaint. [¶] (2) The term "pleading" means a demurrer, answer, complaint, or cross-complaint. [¶] (b) [¶] (1) Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e). [¶] (2) A notice of motion to strike the answer or the complaint, or a portion thereof, shall specify a hearing date set in accordance with Section 1005. [¶] (3) A notice of motion to strike a demurrer, or a portion thereof, shall set the hearing thereon concurrently with the hearing on the demurrer." (Code Civ. Proc. § 435(a) and (b).)

This is consistent with case law and Code of Civil Procedure section 437 which treat determination of a motion to strike in the same manner as a demurrer. Code of Civil Procedure section 437 states: "(a) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. [¶] (b) Where the motion to strike is based on matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (Emphasis added.) (*See also Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255, and stating "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true."].)

In addition to the definition in Code of Civil Procedure section 435(a)(2), pleadings are defined in other provisions of the Code of Civil Procedure. "Under the Code of Civil Procedure, pleadings are defined as 'the formal allegations by the parties of their respective claims and defenses, for the judgment of the court.'" (Code Civ. Proc., § 420.) 'The pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints.' (*Id.*, § 422.10.)" (*Cortina v. North American Title Co.* (2026) 120 Cal. App. 5th 1030, 1140.)

The March Lien is not a "pleading" that is properly subject to a motion to strike under Code of Civil Procedure sections 435 through 437. The Court does not need to reach the merits of the motion as it is not the proper procedural vehicle for challenging the merits of the March Lien. On this ground, the motion to strike is **denied**.

The Court also notes that it is in the Court's discretion whether to strike a pleading or portions of a pleading under Code of Civil Procedure section 436. (Code Civ. Proc. § 436(a) [court "may" strike]; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.) The motion is not supported by a declaration and thus lacks evidence. Alternatively, the Court exercises its discretion not to strike the March Lien on the record before the

Court, and the motion is **denied** on that ground.

The Court observes that Plaintiff is now self-represented. (8/8/2025 Sub. of Atty.) Plaintiff does not identify himself as an attorney with a California state bar number. A trustee of a family trust may represent himself if the trustee is the sole beneficiary of the family trust. If there are other beneficiaries of a family trust besides the trustee, the trustee cannot be self-represented, as in that circumstance, the trustee would be representing not only himself but also the other beneficiaries of the trust. A non-attorney cannot represent other parties. (See *Donkin v. Donkin* (2020) 47 Cal.App.5th 469, 472 [citing the leading case *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, and stating, "*Ziegler's* rationale is that the trustee was effectively speaking for the interests of the trust beneficiaries in the lawsuit against the mobilehome park and, as a nonlawyer, improperly representing those beneficiaries. (*Ziegler, supra*, 64 Cal.App.4th at pp. 548–549; cf. *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1519–1520 [a self-represented trustee does not engage in the unauthorized practice of law under *Ziegler* when he is also the sole beneficiary, and thus is not representing the interests of another].)".) The Court on this motion does not have evidence showing whether Zheng is the sole beneficiary of the family trust, and the issue of whether Zheng can be self-represented is moot on the instant motion because the motion fails for other reasons. The Court anticipates issuing an order to show cause to clarify Zheng's status and ability to remain self-represented in pursuing his claims as trustee of his family trust.

3. 9:00 AM CASE NUMBER: C22-02613
CASE NAME: JANE DOE 1 VS. ACALANES UNION HIGH SCHOOL DISTRICT
FOR PROTECTIVE ORDER LIMITING DEPOSITION TESTIMONY
FILED BY: DOE 1, JANE
TENTATIVE RULING:

The motion for a protective order prohibiting or limiting the deposition testimony of "M.M." (as referenced in the Reply papers) is denied. The request for subject matter limits on questioning is denied. The motion for sanctions is also denied.

4. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
CONT'D PER TR ON 7/10/26
FILED BY:
TENTATIVE RULING:

Continued by the Court to September 11, 2026.

5. 9:00 AM CASE NUMBER: C24-01630
CASE NAME: ROBERT MILLER VS. SOPHIE HAN
AWARDING ATTORNEY FEES AND COSTS AND ACCRUED INTEREST
FILED BY: MILLER, ROBERT A.
TENTATIVE RULING:

The unopposed motion for an order awarding Attorneys' Fees and Costs and accrued interest is